

Costa Mesa Mobile Home Estates (1995) 36 Cal.App.4th 393, 395–396, 42 Cal.Rptr.2d 260, fns. omitted (*Demyer*).)

St. Mary v. Superior Court (2014) 223 Cal.App.4th 762, 776.

Analysis

At bar, Defendant argues Plaintiff failed to serve verifications with her responses to Requests for Admission (“RFAs”), Sets One and Two. Plaintiff asserts she served verifications. However, the Court is unable to discern from her filings whether such verifications exist.

Accordingly, the Court grants Defendant’s motion for an order deeming the RFAs Sets One and Two directed to Plaintiff as admitted, unless Plaintiff serves substantially compliant responses, including verifications, before the scheduled hearing.

Leave to Propound Additional Discovery

Defendant seeks leave to propound additional discovery, stating the defective responses require such. That request is denied at this time as premature and denied. Plaintiff must have an opportunity to comply with the dictates of this decision. Thereafter, Defendant may seek further relief by way of noticed motion as deemed necessary.

Sanctions

“[A] pro se lawyer cannot recover attorney's fees as a discovery sanction. [S]ome of the costs that pro se litigants incur, if reasonably identifiable and allocable, are recoverable as sanctions—even though those costs are ones that lawyers ordinarily include in their hourly rates or other fee structures.” *Kravitz v. Superior Court* (2001) 91 Cal.App.4th 1015, 1020. The Court finds an award of sanctions to compensate Defendant for reasonable expenses incurred as a result of the discovery motion is warranted under the circumstances present here. Therefore, sanctions in the amount of \$310.00 payable to Defendant are granted. The Court denies the request for imposition of additional sanctions payable to the Clerk.

8. CU21-086089 George Horner, et al. vs. Deborah Carver

Appearances are required by the parties to discuss the recommendations of the referee regarding the status of the home/property in preparation for the sale of the same.